

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1161

 By: Hall and Haste of the
 Senate

6 and

7 Caldwell (Trey) and Kane of
8 the House

9
10 An Act relating to the Oklahoma Health Care
11 Authority; amending Section 70 of Enrolled Senate
12 Bill No. 1177 of the 2nd Session of the 60th Oklahoma
13 Legislature, which relates to general appropriations;
14 modifying certain date; providing for duties and
15 compensation of administrators and employees;
16 authorizing payment of certain expenses; authorizing
17 certain transfers; requiring certain transfers;
18 authorizing certain early transfer requests;
19 authorizing the exemption of unanticipated federal
20 funds from expenditure and budgetary limitations;
21 providing procedures; requiring certain budget
22 procedures; prohibiting certain budget procedures;
23 providing an effective date; and declaring an
24 emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY Section 70 of Enrolled Senate Bill
21 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is
22 amended to read as follows:

23 There is hereby appropriated to the Oklahoma Health Care
24 Authority from any monies not otherwise appropriated from the Health

1 Care Enhancement Fund of the State Treasury for the fiscal year
2 ending ~~June 30, 2025~~ June 30, 2027, the sum of Ninety-nine Million
3 Four Hundred Ninety-four Thousand Four Hundred Fifty Dollars
4 (\$99,494,450.00) or so much thereof as may be necessary to perform
5 the duties imposed upon the Authority by law.

6 SECTION 2. A. The duties and compensation of employees, not
7 otherwise prescribed by law, necessary to perform the duties imposed
8 upon the Oklahoma Health Care Authority by law shall be set by the
9 Administrator of the Oklahoma Health Care Authority.

10 B. The Oklahoma Health Care Authority is authorized to:

11 1. Pay professional expenses of the Administrator of the
12 Authority including dues, licenses, professional memberships, and
13 continuing education classes conducted in this state; and

14 2. Pay professional expenses of any employee including dues,
15 licenses, professional memberships, continuing medical education
16 classes conducted in this state, and medical malpractice insurance
17 provided he or she is a full-time employee of the Authority in
18 accordance with subsection B of Section 5006 of Title 63 of the
19 Oklahoma Statutes and is utilizing those professional skills in the
20 performance of his or her job duties.

21 SECTION 3. A. In order to facilitate cash management of
22 federal grant receipts and disbursements, the Oklahoma Health Care
23 Authority is authorized to transfer appropriations, apportionments,
24 fees, fines, and other revenues received in any fund to Funds 200,

1 245, 340, and 425 as necessary to satisfy program expenditure
2 requirements. Such transfers shall be made at the direction of the
3 Administrator of the Oklahoma Health Care Authority and shall be
4 subject to approval of the Director of the Office of Management and
5 Enterprise Services, except that the cumulative amounts transferred
6 shall not exceed the cumulative amounts of equal monthly allotments
7 of the appropriations from the General Revenue Fund and the Health
8 Care Enhancement Fund.

9 B. Monies appropriated or collected for the fiscal year ending
10 June 30, 2027, may be transferred to these disbursing funds for the
11 fiscal year ending June 30, 2026, to satisfy encumbrances and
12 obligations of such fiscal year; provided, that monies equal in
13 amount are transferred from appropriations or collections for the
14 fiscal year ending June 30, 2026, to the disbursing fund for the
15 fiscal year ending June 30, 2027, to satisfy encumbrances and
16 obligations of such fiscal year. All transfer requests shall be in
17 writing to the Director of the Office of Management and Enterprise
18 Services.

19 C. The Oklahoma Health Care Authority shall maintain records of
20 the inter-year transfers.

21 SECTION 4. The Administrator of the Oklahoma Health Care
22 Authority may request that receipt and expenditure of unanticipated
23 federal funds awarded after July 1, 2026, be exempt from expenditure
24 limitations and from budgetary limitations.

1 SECTION 5. The Administrator of the Oklahoma Health Care
2 Authority may request, through the Director of the Office of
3 Management and Enterprise Services, the early transfer by the
4 Oklahoma Tax Commission of tax collections to the General Revenue
5 Fund for the purpose of early allocation to the agency's disbursing
6 funds to alleviate cash flow problems.

7 SECTION 6. This act shall become effective July 1, 2026.

8 SECTION 7. It being immediately necessary for the preservation
9 of the public peace, health, or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

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13 DIRECT TO CALENDAR.
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